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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ROSA DELGADO, individually and on behalf of all others similarly situated,

Plaintiff,

- against -

RIVERSIDE TOWER MANAGEMENT LLC,

Defendant.

Index No. 158204/2026

NOTICE OF ENTRY

PLEASE TAKE NOTICE that the within is a true copy of the Decision and Order of the Hon. Marisol T. Abernathy (fictional) on Motion Sequence No. 001, duly entered in the office of the Clerk of New York County on October 8, 2026, and served on all parties through the e-filing system on **October 9, 2026**.

Dated: New York, New York, October 9, 2026. HARTWELL & OSEI LLP (fictional), Attorneys for Plaintiff

DECISION AND ORDER ON MOTION

Defendant moves to dismiss the complaint under CPLR 3211(a)(1) and (a)(7). Plaintiff opposes. For the reasons below, the motion is **GRANTED IN PART and DENIED IN PART**.

The rent registration records submitted by Defendant conclusively establish that the challenged rents for periods before January 1, 2020 fall outside the applicable lookback period. To that extent, the First Cause of Action is dismissed.

Accepting the allegations of the complaint as true and according Plaintiff every favorable inference, the Second and Third Causes of Action adequately allege a failure to provide heat

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and hot water and a justiciable controversy. The motion is denied as to those claims and as to the remainder of the First Cause of Action.

Accordingly, it is ORDERED that the motion is granted to the extent stated above and otherwise denied; and it is further ORDERED that Defendant shall serve an answer to the remaining claims within the time provided by CPLR 3211(f); and it is further ORDERED that counsel shall appear for a preliminary conference on November 18, 2026.

This constitutes the decision and order of the Court. ENTER: Hon. Marisol T. Abernathy, J.S.C. (fictional)

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